



U.S. Department
of Transportation

Research and
Special Programs
Administration

JUL 1 1994

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11240

EXPIRATION DATE: September 30, 1994

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Mead Fine Paper Company, Chillicothe, Ohio
2. PURPOSE AND LIMITATION: This exemption authorizes the one-time transportation in commerce of a DOT Specification 111A100W1 tank car, containing Class 8 material, meeting all DOT requirements except that the tank is overdue for retest and provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR 173.31(a)(1) and (c)
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.31(a)(1) and (c)
5. BASIS. This exemption is based on Mead Fine Paper Company's application of February 9, 1994, submitted in accordance with 49 CFR 107.103, and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class (Written Class) class number	Identification number	Packing Group
Corrosive liquids,	8	UN 1760	II

7. PACKAGING(S) and SAFETY CONTROL MEASURES:
 - a. Packagings prescribed is a DOT Specification 111A100W1 tank car, GATX 39134, meeting all DOT requirements (49 CFR Parts 100-299), except that the tank car tank is overdue for tests.
 - b. MARKING - Tank car GATX 339134 must be marked DOT-E 11240 in four inch letters and numerals on a contrasting background above the DOT specification number.

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8. SPECIAL PROVISIONS.

a. Transportation is authorized from Williamette Industries' leased track, Dubois, Pennsylvania, to Williamette Industries, Johnsonburg, Pennsylvania, a distance of approximately 25 miles, utilizing the most direct route via the Burlington Pennsylvania Railroad. Once the tank car is unloaded in Johnsonburg, Pennsylvania; transportation is authorized from Johnsonburg, Pennsylvania, to United Rail in Chicago, Illinois, for retest by CATX. The distance is approximately 573 miles utilizing the most direct routing for movement via the Buffalo and Pittsburgh Railroad, Inc. and CSX Transportation rail lines between Johnsonburg, Pennsylvania, and Chicago, Illinois.

b. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS:

a. The Federal Railroad Administration is to be notified if any unusual incident occurs such as exterior tank car damage or derailment, during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:

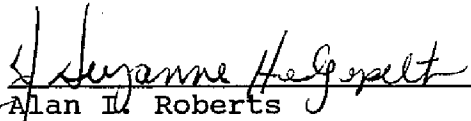
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

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No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In, addition, the holder(s) of this exemption must inform the AAHMS, in writing of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan H. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FRA